

84-809744

WHEN RECORDED MAIL TO:

LAW OFFICES

ROBERT E. CANNY

SETTLEMENT AGREEMENT AND EASEMENT

1337 SANTA MONICA MALL
SUITE 203
SANTA MONICA, CALIFORNIA 90401
(310) 355-9215

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RECITALS

1. JUAN A. GONZALES, aka JUAN A. GONZALEZ and ROSA GONZALES, aka ROSA GONZALEZ, hereinafter "GONZALES" are the owners of certain real property consisting of land and residential dwellings at 4716 and 4724 West 147th Street, Lawndale, California, more particularly described as:

Parcel 1. (4716 West 147th Street)

The East 40 feet of the West 120 feet of Lot 35 of Tract No. 856 in the City of Lawndale, County of Los Angeles, State of California, as per map recorded in Book 16, page 96 of maps, in the office of the County Recorder of said County.

Parcel 2. (4724 West 147th Street)

The West 40 feet of Lot 35 of Tract No. 856, in the City of Lawndale, County of Los Angeles, State of California, as per map recorded in Book 16 page 96 of maps, in the office of the County Recorder in said County.

2. BILL PREWITT, aka BILL McCOY PREWITT, hereinafter "PREWITT", is the owner of certain real property consisting of land and a residential building at 4720 West 147th Street, Lawndale, California, more particularly described as:

The East 40 feet of the West 80 feet of Lot 35 of Tract No. 856 in the City of Lawndale, County of Los Angeles, State of California, as per map recorded in Book 16, page 96 of maps, in the office of the County Recorder of said County.

3. The PREWITT property, along its Eastern and Western boundaries, adjoins the two GONZALES' parcels. Improvements constructed on Parcel 2 of the GONZALES property encroach on the PREWITT

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property and improvements constructed on the PREWITT property encroach on Parcel 1 of the GONZALES property as more fully set forth below.

4. Portions of an existing driveway, block wall and two-story building constructed on Parcel 2 of the GONZALES property encroach across the western boundary of the PREWITT property for a distance of from one foot to over two feet along the entire said western boundary.

5. Portions of an existing driveway, and carport constructed on the PREWITT property encroach across the Western boundary Parcel 1 of the GONZALES property for a distance of more than one foot along some 40 feet of the Northerly portion of said Western boundary.

6. As a result of these encroachments, cross-actions were filed by BILL PREWITT and JUAN GONZALES in the Municipal Court of the County of Los Angeles, South Bay Judicial District, Case No. 102072, entitled, in brief, BILL PREWITT vs. JUAN GONZALES and JUAN GONZALES and ROSA GONZALES vs. BILL PREWITT, JOHN UTREPAS, FIRST QUALITY BUILDERS and JCU DISTRIBUTORS, and JOHN UTRERAS vs. EDWARD L. SCHMAHL, JUAN GONZALEZ and ROSA GONZALEZ.

7. The parties hereto desire to compromise and settle any and all issues raised, or which could have been raised between them in said action or otherwise between them, and to each fully release the other of and from any and all claims between them arising out of the matters alleged in the pleadings in said action and to confirm to PREWITT, insofar as GONZALES is concerned, and to confirm

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to GONZALES, insofar as PREWITT is concerned, the right to exclusively use and maintain their said respective encroachments, in place, upon the terms and conditions herein set forth.

This compromise and release shall not extend to any other parties in said action.

AGREEMENTS

IT IS AGREED AND STIPULATED by and between GONZALES and PREWITT as follows:

1. GONZALES and their successors in interest shall have the exclusive right to use and maintain the said encroachment from Parcel 2 of the said GONZALES property along the Western side of the said PREWITT property, but only in the area and location described on Exhibit "A" hereto, and made a part hereof. This right shall constitute an exclusive, non-severable easement and shall run with the land until such time as all of the existing residential structures of Parcel 2 of the Gonzales property are totally razed, removed or demolished by any cause.

It is expressly agreed and understood that this easement may conflict with other prior easements, whether or not of record.

PREWITT expressly warrants and represents that any other such easements actually known to PREWITT are as follows:

NONE

2. PREWITT and his successors in interest shall have the exclusive right to use and maintain the said encroachments from the said PREWITT property along the Western side of Parcel 1 of the said GONZALES property, but only in the area and location described on Exhibit "B" hereto, and made a part hereof. This right

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shall constitute an exclusive, non-severable easement and shall run with the land until such time as the existing residence on the PREWITT property is totally razed, removed or demolished by any cause.

It is understood and agreed that this easement may conflict with other prior easements, whether or not of record.

GONZALES expressly warrants and represents that any other such easements actually known to GONZALES are as follows:

NONE

3. The said encroachments shall severally, at all times, remain as they presently are and shall not be changed in any manner regarding their location so as to further encroach on the parties respective properties.

4. During the terms of their respective easements, the parties hereby each grant unto the other and to their respective successors in interest the right to enter upon the property of the other for the reasonable and necessary repair and maintenance of the said encroachments.

Each party, or the successors in interest thereto, shall cause reasonable notice to be given the other prior to such entry and the other party shall not unreasonably withhold approval of entry for such purposes.

5. GONZALES shall pay to PREWITT the sum of three thousand dollars (\$3,000.00) in the form of a note secured by trust deed on Parcel 1 of the said GONZALES property. Said note shall bear simple interest at the rate of ten percent (10%) per annum from

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June 1, 1984 until paid. Payments of interest only shall be made monthly until June 1, 1987, at which time, the entire unpaid principal balance and interest accrued and owing shall be all due and payable.

6. The parties shall cause mutual dismissals with prejudice to be filed as to one another in the said civil action.

7. This agreement may be executed in multiple counterparts, which counterparts taken together shall constitute the agreement of the parties.

IN WITNESS WHEREOF, this agreement is executed
May 22, 1984 at Los Angeles, California.

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GONZALES:

Juan A. Gonzalez
JUAN A. GONZALES, aka
JUAN A. GONZALEZ

Rosa Gonzalez
ROSA GONZALES, aka
ROSA GONZALEZ

PREWITT:

Bill Prewitt aka Bill McCoy Prewitt
BILL PREWITT, aka
BILL MCCOY PREWITT

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State of CALIFORNIA }
County of LOS ANGELES } SS.

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On this the 22ND day of MAY 1984, before me,

ROBERT E. CANNY
the undersigned Notary Public, personally appeared
JUAN A. GONZALEZ and ROSA GONZALEZ

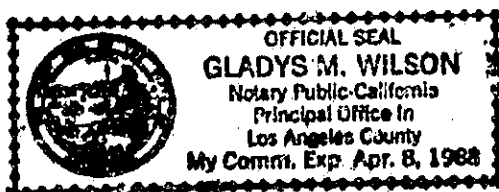
☐ personally known to me
☐ proved to me on the basis of satisfactory evidence
to be the person(s) whose name(s) are subscribed to the
within instrument, and acknowledged that they executed it.
WITNESS my hand and official seal.

Robert E. Canny
Notary's Signature

GENERAL ACKNOWLEDGMENT FORM 7110052

NATIONAL NOTARY ASSOCIATION • 23012 Ventura Blvd. • Woodland Hills, CA 91364

State of CALIFORNIA }
County of LOS ANGELES } SS.



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On this the 9 day of MAY 1984, before me,

GLADYS M. WILSON
the undersigned Notary Public, personally appeared
BILL PREWITT, aka BILL MCCOY PREWITT

☐ personally known to me
☐ proved to me on the basis of satisfactory evidence
to be the person(s) whose name(s) is subscribed to the
within instrument, and acknowledged that he executed it.
WITNESS my hand and official seal.

Gladys M. Wilson
Notary's Signature

GENERAL ACKNOWLEDGMENT FORM 7110052

NATIONAL NOTARY ASSOCIATION • 23012 Ventura Blvd. • Woodland Hills, CA 91364

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EXHIBIT "A"

PREWITT has granted to GONZALEZ an exclusive easement to run with the land. Said easement affects a portion of the East 40 feet of the West 80 feet of Lot 35, Tract 856 in the City of Lawndale, County of Los Angeles, State of California, as recorded in Book 16 on Page 96 of Maps in the Office of the Los Angeles County Recorder.

Said easement shall encompass that land within metes and bounds starting from a point at the centerline of West 147th Street and proceeding Southerly for a distance of 161.0 feet along the West Boundary of the East 40 feet of the West 80 feet of said Lot 35, thence Easterly a distance of 2.1 feet parallel to said centerline of 147th Street; thence Northerly a distance of 31.0 feet, thence Easterly, parallel to the said centerline of 147th Street, a distance of 1.0 feet, thence Northerly to the said centerline of 147th Street, thence Westerly to the point of origin.

Said grant of easement affects only that portion of said metes and bounds lying on the PREWITT property and is intended to encompass only those portions of the existing driveway, block wall and two-story building owned by GONZALEZ and situated on the West 40 feet of said Lot 35 that encroach on the adjacent PREWITT property (East 40 feet of the West 80 feet of said Lot 35), no less and no more.

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In case of conflict between the foregoing legal description and the actual said encroachment, the said encroachments shall be deemed to determine the correct boundaries of the easement.

EXHIBIT "A"

EXHIBIT "B"

GONZALEZ has granted to PREWITT, an exclusive easement, to run with the land.

Said easement affects a portion of the West 1.2 feet of the East 40 feet of the West 120 feet of Lot 35, Tract 856 in the City of Lawndale, County of Los Angeles, State of California, as recorded in Book 16 on Page 96 of Maps in the Office of the Los Angeles County Recorder.

Said easement shall encompass that land within metes and bounds starting from a point at the centerline of West 147th Street and proceeding Southerly for a distance of 70.0 feet along the West Boundary of the East 40 feet of the West 120 feet of said Lot 35, thence, Easterly parallel to said centerline of 147th Street for a distance of 1.2 feet, thence Northerly to the said centerline of 147th Street, thence Westerly to the point of origin.

Said grant of easement affects only that portion of said metes and bounds lying on the GONZALEZ property and is intended to encompass only those portions of the existing driveway and carport owned by PREWITT and situated on the East 40 feet of the West 80 feet of said Lot 35, that encroaches on the adjacent GONZALEZ property (East 40 feet of the West 120 feet of said Lot 35), no less and no more.

In case of conflict between the foregoing legal description and the actual said encroachment, the said encroachments shall be deemed to determine the correct boundaries of the easement.

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EXHIBIT "B"